

Multiple Choice (10 marks)

1. What is 'unilateral acts'?
 - (a) They are acts that States perform as practice in the context of custom
 - (b) They are acts creating unilateral legal obligations to the acting State
 - (c) Unilateral acts are simply political acts of State devoid of any legal effect
 - (d) Unilateral acts are those that State perform in order to be bound by a treaty
2. Why does communitarianism resemble Aristotle's philosophy more than Kant's?
 - (a) Because Aristotle justified slavery.
 - (b) Because Kant failed to distinguish individual from social morality?
 - (c) Because Aristotle believed that man is a 'social animal'
 - (d) Because Kant regarded the individual as unimportant.
3. What is Kant's 'categorical imperative'?
 - (a) You must not consciously harm another person.
 - (b) You must always act in the best interests of the community.
 - (c) You must treat human beings as means rather than ends.
 - (d) You must act according as if your values apply to everyone.
4. Maine's famous aphorism that 'the movement of progressive societies has hitherto been a movement from Status to Contract' is often misunderstood. In what way?
 - (a) It is misinterpreted as a prediction.
 - (b) His concept of status is misrepresented.
 - (c) It is taken literally.
 - (d) His idea is considered inapplicable to Western legal systems.
5. Which is the least accurate description of legal positivism?
 - (a) It regards morals and law as inseparable.
 - (b) It perceives law as commands.
 - (c) It regards a legal order as a closed logical system.
 - (d) It espouses the view that there is no necessary connection between morality and law.

True / False (10 marks)

Answer True or False

6. True or False: According to Austin, the science of jurisprudence primarily focuses on positive law, which is law enacted by a governing authority.
7. True or False: The Universal Declaration of Human Rights (UDHR) is a resolution adopted by the UN General Assembly.
8. True or False: The protective principle of jurisdiction grants a state authority solely based on the nationality of the offender, regardless of the harm caused.
9. True or False: Adherence to precedent in legal cases is known as the doctrine of stare decisis.
10. True or False: Individuals enjoy international legal personality, but this is limited compared to that of States and international organizations.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the Social Fact Thesis as articulated by Ken Himma in positivism. How does this thesis define law as a social construction, and what implications does this have for constitutional law?
12. Discuss the 'fair play' argument in support of a duty to obey the law, and analyze the claim that the legal system is inherently unfair. How does this challenge the argument?

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